



THE MENDED HEARTS, INC.
International Headquarters & Resource Center
1579 US Highway 19
Leesburg GA 31763
(888) HEART99 (888-432-7899)
www.mendedhearts.org
info@mendedhearts.org

To inspire hope and improve the quality of life
of heart patients and their families through ongoing
peer-to-peer support, education, and advocacy.

Confidentiality and Non-Disclosure Agreement-- Members and Member Volunteers

It is the policy of The Mended Hearts, Inc (“**MHI**”) that all of its members and member volunteers must annually enter into a written Confidentiality and Non-Disclosure Agreement (“**Agreement**”) in the form approved by MHI’s Board of Directors. The MHI Board of Directors approved the use of this form at its meeting held on September 7th, 2022. This form applies to members and member volunteers of The Mended Hearts, Inc., including the Mended Hearts®, Young Mended Hearts®, and Mended Little Hearts® programs.

MHI believes that failure to protect and secure Confidential Information (as defined in this Agreement) may harm the reputation of MHI in the community and may lead to the loss of funding or service opportunities. In addition, protection of Confidential Information related to patient health information is required by Federal and state patient privacy laws.

Failure or refusal of a member or member volunteer to enter into the approved form of Confidentiality and Non-Disclosure Agreement may be grounds for dismissal of the member or the member volunteer. In addition, breach of the obligations contained in this Confidentiality and Non-Disclosure Agreement may result legal action being taken against the member or member volunteer.

For purposes of this Agreement, “**Confidential Information**” means all MHI-related information disclosed to a member or member volunteer or discovered by a member or member volunteer, including oral and written information and information in any electronic form, that is designated by MHI as confidential or that reasonably should be understood to be confidential given the nature of the information and/or the circumstances of its communication. This includes any information that is protected from disclosure by law or regulation, business opportunities, business and marketing plans, technology and technical information, product plans and designs, business processes, and anything else that this Agreement indicates are confidential.

Confidential Information includes but is not limited to patient information, including “**protected health information**” as defined by the Health Insurance Portability and Accountability Act of 1996. This includes patient health information such as diagnoses, treatment information, medical test results, and prescription information, as well as national identification numbers and demographic information such as birth dates, gender, ethnicity, and contact and emergency contacts. Conversations between physicians, nurses and other healthcare professionals in the



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setting of a patient receiving care or between a member or member volunteer and a patient are also confidential and may not be disclosed except in the context of the performance of services by the member or member volunteer within the scope of their responsibility.

Members and member volunteers are cautioned and expected to demonstrate professionalism, good judgment, and care at all times in handling Confidential Information and to avoid unauthorized or improper disclosures of Confidential Information. Members and member volunteers are expected and encouraged to discuss, encourage and promote MHI with one another and targeted individuals, groups and organizations. **Members and member volunteers are not permitted to engage in any discussion, whether oral, written or electronic, containing Confidential Information except in the context of the performance of services by the member or member volunteer within the scope of their assigned area of responsibility.** Members and member volunteers are responsible for maintaining the confidentiality of all Confidential Information at all times.

Members and member volunteers may not use Confidential Information regarding new business opportunities, current and prospective donors, trade secrets, client lists, or other Confidential Information acquired by virtue of serving MHI as a member or a member volunteer. Members and member volunteers may not use any contact information of heart disease constituents for any purpose other than the business of MHI.

The obligations of this Agreement are binding and continue even after the member or member volunteer completes their service with MHI. Members and member volunteers agree that upon termination of their service with MHI they will, upon receipt of written request of MHI, return to MHI, or destroy or delete, all Confidential Information that they may have in their possession at that time.

I have read this *Confidentiality and Non-Disclosure Agreement--MHI Members and Member Volunteers*. I agree to be bound by this Agreement. I agree to inform the MHI Corporate Secretary immediately if I believe I may be in violation of my obligations under this Agreement.

Signature _____

Printed Name _____ Chapter Name and Number _____

Date _____

Approved by the MHI Corporate Secretary on _____